

Document

EXHIBIT 10.36

The Goldman Sachs Group, Inc.

[One-Time][Year-End] RSU Award

This Award Agreement, together with The Goldman Sachs Amended and Restated Stock Incentive Plan (2021) (the “Plan”), governs your _____ award of RSUs (your “Award”). You should read carefully this entire document (including its [Appendix][Appendices]), the Award Statement and the Signature Card (together, the “Award Agreement”), as well as the other documentation presented to you in connection with acceptance of your Award (collectively, “Award Documentation”).

Acceptance

1.

You Must Decide Whether to Accept Your Award

To be eligible for your Award, you must by the Acceptance Deadline: (a) open and activate an Account; (b) accept any Additional Terms presented to you as part of the Award Documentation; and (c) execute (including by electronic means) the accompanying Signature Card in accordance with its instructions. By executing the Signature Card, you confirm your agreement to all

of the terms of the Award Agreement (including the Award Statement and the Signature Card), as well as any Additional Terms.

Documents that Govern Your Award; Definitions

2.

The Plan

Your Award is granted under the Plan, and the Plan’s terms apply to, and are a part of, this Award Agreement. The Plan and its Prospectus are included with the Award Documentation.

3.

Your Award Statement

The accompanying Award Statement contains the type and number of RSUs awarded to you and some of your Award’s specific terms. For example, it specifies any applicable Vesting Dates, Delivery Dates and Transferability Dates. Your Award consists of up to [two][three] types of RSUs that are designated in the Award Statement and referred to in this Award Agreement as:

Award Statement Designation

Award Agreement Reference

____ Base RSUs

Base RSUs

____ Supplemental RSUs

Supplemental RSUs

[____ Additional Base RSUs]

[Additional RSUs]

4.

All references to RSUs in this Award Agreement include Outstanding RSUs of all types, whether Base RSUs[,][or] Supplemental RSUs [or Additional RSUs] (as applicable to you). This Award Agreement does not govern the terms and conditions of any RSUs designated on your Award Statement as “Short-Term RSUs,” which (if applicable) are addressed in a separate Award Agreement.

5.

Definitions

Unless otherwise defined herein, including in the

Definitions Appendix

or any other Appendix, capitalized terms have the meanings provided in the Plan.

Vesting of Your RSUs

6.

Vesting

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On each Vesting Date listed on your Award Statement, you will become Vested in the amount of any Base RSUs and Additional RSUs listed next to that date. All of your Supplemental RSUs, if any, are Vested. When an RSU becomes Vested, it means

only

that your continued active Employment is not required for delivery of that portion of RSU Shares.

Vesting does not mean you have a non-forfeitable right to the Vested portion of your Award. The terms of this Award Agreement (including conditions to delivery and any applicable Transfer Restrictions) continue to apply to Vested RSUs, and you can still forfeit Vested RSUs and any RSU Shares

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Delivery of Your RSU Shares

7.

Delivery

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Reasonably promptly (but no more than 30 Business Days) after each Delivery Date identified on your Award Statement, RSU Shares (less applicable withholding as described in Paragraph 13(b)) will be delivered (by book entry credit to your Account) in respect of the type and amount of Outstanding RSUs listed next to that date. The Committee may select multiple dates within the 30-Business-Day period following the Delivery Date to deliver RSU Shares in respect of all or a portion of the RSUs with the same Delivery Date listed on the Award Statement, and all such dates will be treated as a single Delivery Date for purposes of this Award. Until such delivery, you have only the rights of a general unsecured creditor, and no rights as a shareholder of GS Inc. Without limiting the Committee's authority under Section 1.3.2(h) of the Plan, the Firm may accelerate any Delivery Date by up to 30 days.

Transfer Restrictions Following Delivery

8.

Transfer Restrictions and Shares at Risk

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Within 30 Business Days after any applicable Transferability Date identified on your Award Statement, GS Inc. will remove the Transfer Restrictions on any Shares at Risk in respect of the type and amount of Outstanding RSUs listed next to that date. If your Award Statement reflects a Transferability Date, and ___% of the RSU Shares delivered on any Delivery Date

before

tax withholding (or, if the tax withholding rate is greater than 50%, all RSU Shares) and all of the RSU Shares delivered on any Delivery Date

after

tax withholding will be Shares at Risk. The Committee may select multiple dates within the 30-Business-Day period on which to remove Transfer Restrictions for all or a portion of the Shares at Risk with the same Transferability Date, and all such dates will be treated as a single Transferability Date for purposes of this Award. Any purported sale, exchange, transfer, assignment, pledge, hypothecation, fractionalization, hedge or other disposition in violation of the Transfer Restrictions on Shares at Risk will be void.

If your Award Statement does not reflect any Transferability Date as applying to a type of Outstanding RSUs, then references to Transfer Restrictions and Shares at Risk in this Award Agreement are inapplicable to your Award RSU Shares delivered in respect of such RSUs; and this Paragraph 7 does not apply to RSU Shares delivered in respect of such RSUs;

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Dividends

9.

• Dividend Equivalent Rights and Dividends

• Each RSU includes a Dividend Equivalent Right, which entitles you to receive an amount (less applicable withholding), at or after the time of distribution of any regular cash dividend paid by GS Inc. in respect of a share of Common Stock, equal to any regular cash dividend payment that would have been made in respect of an RSU Share underlying your Outstanding RSUs for any record date that occurs on or after the Date of Grant. In addition, you and You will be entitled to receive on a current basis any regular cash dividend paid in respect of any Shares at Risk. The RSUs do

not

include Dividend Equivalent Rights.

Forfeiture of Your Award

10.

How You May Forfeit Your Award

• This Paragraph 9 sets forth the events that result in forfeiture of up to all of your RSUs and any Shares at Risk and may require repayment to the Firm of up to all other amounts previously delivered or paid to you under your Award in accordance with Paragraph 10. More than one event may apply, and in no case will the occurrence of one event limit the forfeiture and repayment obligations as a result of the occurrence of any other event. Paragraph 11 (relating to certain circumstances under which you will not forfeit your unvested RSUs upon Employment termination) and Paragraph 12 (relating to certain circumstances under which vesting, delivery and/or release of Transfer Restrictions may be accelerated) provide for exceptions to one or more provisions of this Paragraph 9.

(a)

Unvested RSUs Forfeited if Your Employment Terminates

• If your Employment terminates for any reason or you are otherwise no longer actively Employed with the Firm (which includes off-premises notice periods, garden leaves, pay in lieu of notice or any other similar status), your rights to your Outstanding Base RSUs and Additional RSUs that are not Vested will terminate, and no RSU Shares will be delivered in respect of such RSUs.

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(b)

Vested and Unvested Base RSUs and Additional RSUs Forfeited Upon Certain Events

• If any of the following occurs before the applicable Delivery Date, your rights to all of your Outstanding Base RSUs and Additional RSUs (whether or not Vested) will terminate, and no RSU Shares will be delivered in respect of such RSUs;

(i)

You Solicit Clients or Employees, Interfere with Client or Employee Relationships or Participate in the Hiring of Employees

• Except as prohibited by applicable law, either;

A.

you, in any manner, directly or indirectly, (1) Solicit any Client to transact business with a Covered Enterprise or to reduce or refrain from doing any business with the Firm, (2) interfere with or damage (or attempt to interfere with or damage) any relationship between the Firm and any Client, (3) Solicit any person who is an employee of the Firm to resign from the Firm, (4) Solicit any Selected Firm Personnel to apply for or accept employment (or other association) with any person or entity other than the Firm or (5) participate in the hiring of any Selected Firm Personnel by any person or entity other than the Firm (including, without limitation, participating in the identification of individuals for potential hire, and participating in any hiring decision), whether as an employee or consultant or otherwise, or

B.

Selected Firm Personnel are Solicited, hired or accepted into partnership, membership or similar status by any entity where you have, or will have, direct or indirect managerial responsibility for such Selected Firm Personnel, unless the Committee determines that you were not involved in such Solicitation, hiring or acceptance.

(ii)

§ 91; GS Inc. Fails to Maintain the Minimum Tier 1 Capital Ratio

. GS Inc. fails to maintain the required § 220; Minimum Tier 1 Capital Ratio § 221; as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days. § 93;

(iii)

§ 91; GS Inc. Is Determined to Be in Default

. The Board of Governors of the Federal Reserve or the Federal Deposit Insurance Corporation (the § 220; FDIC § 221;) makes a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is § 220; in default § 221; or § 220; in danger of default. § 221; § 93;

(c)

Vested and Unvested RSUs and Shares at Risk Forfeited upon Certain Events

. If any of the following occurs (i) your rights to all of your Outstanding RSUs (whether or not Vested) will terminate, and no RSU Shares will be delivered in respect of such RSUs and (ii) your rights to any Shares at Risk will terminate and all such Shares at Risk will be cancelled, in each case, as may be further described below § 58;

(i)

You Failed to Consider Risk

. You Failed to Consider Risk during ____.

(ii)

Your Conduct Constitutes Cause

. Any event that constitutes Cause has occurred before the applicable Delivery Date for RSUs or the applicable Transferability Date for any Shares at Risk.

(iii)

You Breach an Obligation to the Firm

. The Committee determines that, before the applicable Delivery Date for RSUs or the applicable Transferability Date for any Shares at Risk, you Breached an Obligation to the Firm.

(iv)

You Do Not Provide Timely Certifications or Comply with Your Certifications

. You fail to certify to GS Inc. that you have complied with all of the terms of the Plan and this Award Agreement as required by Paragraph 13(d), or the Committee determines that you have failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.

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(v)

You Do Not Follow Dispute Resolution Procedures

. You attempt to have any dispute, controversy or claim under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph 16 or Section 3.17 of the Plan, or you attempt to arbitrate a dispute, controversy or claim without first having exhausted your internal administrative remedies in accordance with Paragraph 13(c).

(vi)

You Bring an Action that Results in a Determination that Any Award Agreement Term Is Invalid

. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.

(vii)

You Receive Compensation in Respect of Your Award from Another Employer

. Your Employment terminates for any reason or you otherwise are no longer actively Employed with the Firm and another entity grants you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of any Outstanding RSUs or Shares at Risk § 59;

provided

,

however

, that your rights will only be terminated in respect of the RSUs and Shares at Risk that are replaced, substituted for or otherwise considered by such other entity in making its grant.

(d)

Additional Forfeiture and Repayment Conditions for Material Risk Takers

. If at any point in _____; Since the Firm identified you as a Material Risk Taker (MRT;) in _____; then the

EU and UK Material Risk Taker Appendix

and/or the

GSBE Material Risk Taker Appendix

(as applicable to you, the MRT Appendix;) supplements this Paragraph 9. The MRT Appendix sets forth additional events that (i) result in forfeiture of up to all of your RSUs and Shares at Risk and (ii) may require repayment to the Firm of up to all amounts previously delivered or paid to you under your Award in accordance with Paragraph 10. Your MRT classification, as defined in the MRT Appendix, was communicated to you separately. If you are unsure of whether the Firm identified you as an MRT, or which classification(s) apply, you must contact HCM prior to accepting this Award. The Firm's records with respect to such classification(s) will be controlling as to whether and which MRT Appendix applies to your Award. The MRT classifications with their corresponding MRT Appendix are as follows:

MRT Classification

MRT Appendix

EU MRT, GSAMI MRT, GSAMI Senior Management and/or UK MRT

EU and UK Material Risk Taker Appendix

GSBE MRT and GSBE Senior Management

GSBE Material Risk Taker Appendix

GSBE MRT or GSBE Senior Management

and

any combination of EU MRT, GSAMI MRT, GSAMI Senior Management or UK MRT

GSBE Material Risk Taker Appendix

and

EU and UK Material Risk Taker Appendix;

(e)

Actions Pending Forfeiture

. In connection with any investigation as to whether any of the events that would result in forfeiture under the Plan or; this Paragraph 9 or the MRT Appendix; have occurred, the Firm reserves the right to (i) suspend vesting of Outstanding RSUs, payments under Dividend Equivalent Rights; delivery of RSU Shares or release of any Transfer Restrictions; (ii) deliver any RSU Shares, payments under Dividend Equivalent Rights; or dividends into an escrow account in accordance with Paragraph 13(e)(iii); or (iii) apply Transfer Restrictions to any RSU Shares.

Repayment of Your Award

11.

When You May Be Required to Repay Your Award

. If the Committee determines that any term of this Award was not satisfied, you will be required, immediately upon demand therefor, to repay to the Firm the following:

(a)

Any RSU Shares (which, for the avoidance of doubt, includes any Shares at Risk) for which the terms (including the terms for delivery) of the related RSUs were not satisfied, in accordance with Section 2.6.3 of the Plan.

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(b)

Any Shares at Risk for which the terms (including the terms for the release of Transfer Restrictions) were not satisfied, in accordance with Section 2.5.3 of the Plan.

(c)

Any RSU Shares that were delivered (but not subject to Transfer Restrictions) at the same time any Shares at Risk that are cancelled or required to be repaid were delivered.

(d)

Any payments under Dividend Equivalent Rights for which the terms were not satisfied (including any such payments made in respect of RSUs that are forfeited or RSU Shares that are cancelled or required to be repaid), in accordance with Section 2.8.3 of the Plan;

(e)

Any dividends paid in respect of any RSU Shares that are cancelled or required to be repaid.

(f)

Any amount applied to satisfy tax withholding or other obligations with respect to any RSUs, RSU Shares; dividend payments; and payments under Dividend Equivalent Rights; that are forfeited or required to be repaid.

Exceptions to the Vesting, Delivery and/or Transferability Dates

12.

Circumstances Under Which You Will Not Forfeit Your Unvested RSUs on Employment Termination (but the Original Delivery Dates and Transferability Dates Continue to Apply)

If your Employment terminates at a time when you meet the requirements for Retirement; Extended Absence; Downsizing; or Approved Termination; each as described below, then Paragraph 9(a) will not apply, and your Outstanding RSUs will be treated as described in this Paragraph 11. All other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10 and the MRT Appendix, continue to apply.

(a)

Retirement or Extended Absence and No Association With a Covered Enterprise

(i)

Generally

If your Employment terminates by Retirement or Extended Absence, your Outstanding RSUs that are not Vested will be treated as Vested.

However, your rights to any Outstanding RSU that are treated as Vested by this Paragraph 11(a)(i) will terminate and no RSU Share will be delivered in respect of that RSU if you Associate With a Covered Enterprise on or before the originally scheduled Vesting Date for that RSU

You acknowledge and agree that if any portion of the preceding sentence is unenforceable under applicable law, or is found to be unenforceable, then the entirety of this Paragraph 11(a)(i) is inapplicable to you and your rights to any Outstanding RSUs that were treated as Vested, or otherwise would have been treated as Vested, will be cancelled in accordance with Paragraph 9(a).

(ii)

Special Treatment for Involuntary or Mutual Agreement Termination

The second sentence of Paragraph 11(a)(i) (relating to forfeiture if you Associate With a Covered Enterprise) will not apply if (A) the Firm characterizes your Employment termination as involuntary; or by mutual agreement; and, in each case, you have not engaged in conduct constituting Cause) and (B) you execute a general waiver and release of claims and an agreement to pay any associated tax liability, in each case, in the form the Firm prescribes. No Employment termination that you initiate, including any purported constructive termination; a termination for good reason; or similar concepts, can be involuntary; or by mutual agreement;

(b)

Downsizing

Downsizing

If (i) the Firm terminates your Employment solely by reason of a downsizing; (and you have not engaged in conduct constituting Cause) and (ii) you execute a general waiver and release of

claims and an agreement to pay any associated tax liability, in each case, in the form the Firm prescribes, your Outstanding RSUs that are not yet Vested will become Vested. Whether or not your Employment is terminated solely by reason of a downsizing; will be determined by the Firm in its sole discretion.

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(c)

Approved Terminations of Fixed-Term Employees

. If the Firm classifies you as a fixed-term employee and your Employment terminates solely by reason of an Approved Termination (and you have not engaged in conduct constituting Cause), your Outstanding RSUs that are not yet Vested will become Vested.

13.

Accelerated Vesting, Delivery and/or Release of Transfer Restrictions in the Event of a Qualifying Termination After a Change in Control; Conflicted Employment; or Death

. In the event of your Qualifying Termination After a Change in Control; Conflicted Employment; or death, each as described below, then Paragraph 9(a) will not apply, your Outstanding RSUs and any Shares at Risk will be treated as described in this Paragraph 12, and, except as set forth in Paragraph 12(a), all other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10 and the MRT Appendix, continue to apply.

(a)

You Have a Qualifying Termination After a Change in Control

. If your Employment terminates when you meet the requirements of a Qualifying Termination After a Change in Control, the RSU Shares underlying your Outstanding RSUs (whether or not Vested) will be delivered, and any Transfer Restrictions will cease to apply. In addition, the forfeiture events in Paragraph 9 (except the MRT Appendix) will not apply to your Award.

(b)

You Are Determined to Have Accepted Conflicted Employment

(i)

Generally

. To the extent consistent with applicable law, regulation and regulatory guidance, the following will apply as soon as practicable after the Committee has received satisfactory documentation relating to your Conflicted Employment.

A.

Vesting

. If your Employment terminates solely because you resign to accept Conflicted Employment and, according to the Firm's records, you have completed at least three years of continuous service with the Firm as of the date your Employment terminates, your Outstanding RSUs will Vest; otherwise, you will forfeit any Outstanding RSUs that are not Vested in accordance with Paragraph 9(a).

B.

Delivery and Release of Transfer Restrictions

. If your Employment terminates solely because you resign to accept Conflicted Employment or if, following your termination of Employment, you notify the Firm that you are accepting Conflicted Employment, RSU Shares will be delivered in respect of your Outstanding Vested RSUs (including in the form of cash as described in Paragraph 13(e)(ii)) and any Transfer Restrictions will cease to apply.

(ii)

You May Have to Take Other Steps to Address Conflicts of Interest

. The Committee retains the authority to exercise its rights under the Award Agreement or the Plan

(including Section 1.3.2 of the Plan) to take or require you to take other steps it determines in its sole discretion to be necessary or appropriate to cure an actual or perceived conflict of interest (which may include a determination that the accelerated vesting, delivery and/or release of Transfer Restrictions described in Paragraph 12(b)(i) will not apply because such actions are not necessary or appropriate to cure an actual or perceived conflict of interest).]

(c)

Death

. If you die, the RSU Shares underlying your Outstanding RSUs (whether or not Vested) will be delivered to your Account and any Transfer Restrictions will cease to apply as soon as practicable after the date of death and receipt of any documentation as may be requested by the Committee or a SIP Administrator.

Other Terms and Conditions of Your Award

14.

Additional Terms, Conditions and Consents

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(a)

You Will Be Required to Accept Additional Terms

. In addition to the terms of the Award Agreement, the Award Documentation includes other contractual terms that you must accept as a condition of the Award (the “Additional Terms”). By accepting the Award and executing the Signature Card, you agree to any such Additional Terms applicable to you as set forth in the Award Documentation, which will include but are not limited to the following:

(i)

Notice Period Policy

. You must agree to abide by the terms, as applicable to you, of the Policy on Notice Periods for Recipients of Year-End Equity-Based Awards and Other Deferred Compensation (the “Notice Period Policy”).

(ii)

Agreement Regarding Arbitration of Employment-Related Matters

. You must agree to the Agreement Regarding Arbitration of Employment-Related Matters, which imposes obligations in addition to those contained in Paragraph 16.

(iii)

APAC Restrictive Covenants

. If you are employed by the Firm in the Asia-Pacific Region (

e.g.

, Australia, the People’s Republic of China, the Hong Kong Special Administrative Region, India, Indonesia, Japan, the Republic of Korea, New Zealand, Singapore, Taiwan), you must agree to the APAC Restrictive Covenants Agreement.

(iv)

Role-, Business- or Division-Specific Agreements

. If applicable to you, you must accept Additional Terms related to your specific role, business unit or division as set forth in the Award Documentation.

(b)

You Must Satisfy Applicable Tax Withholding Requirements

. Delivery of RSU Shares is conditioned on your satisfaction of any applicable withholding taxes in accordance with Section 3.2 of the Plan, which includes the Firm deducting or withholding amounts from any payment or distribution to you. In addition, to the extent permitted by applicable law, the Firm, in its sole discretion, may require you to provide amounts equal to all or a portion of any Federal, state, local, foreign or other tax obligations imposed on you or the Firm in connection with the grant, Vesting or delivery of this Award by requiring you to choose between remitting the amount (i) in cash (or through payroll deduction or otherwise) or (ii) in the form of proceeds from the Firm’s executing a sale of RSU Shares delivered to you under this Award. In no event, however, does this Paragraph 13(b) give you any discretion to determine or affect the timing of the delivery of RSU Shares or the timing of payment of

tax obligations.

(c)

You Must Comply with Applicable Deadlines and Procedures to Appeal

. If you disagree with a determination made by the Committee, the SIP Administrators or any of their delegates or designees relating to the Plan or the Award Agreement and you wish to appeal such determination, you must submit a written request to the Committee for review within 180 days after the determination at issue. You must exhaust your internal administrative remedies (

i.e.

, submit your appeal and wait for resolution of that appeal) before seeking to resolve a dispute, controversy or claim through arbitration pursuant to Paragraph 16 and Section 3.17 of the Plan.

(d)

You May Be Required to Certify Compliance with Award Terms; You Are Responsible for Providing Updated Address and Contact Information After Your Departure from the Firm

. If your Employment terminates while you continue to hold RSUs or Shares at Risk, the Firm may require you to provide certifications of your compliance with all of the terms of the Plan and this Award Agreement. You understand and agree that (i) your contact information as reflected in the Firm's personnel records at the time any certification is requested will be deemed current; (ii) it is your responsibility to inform HCM of any changes to your contact information to ensure timely receipt of the certification materials, regardless of whether your contact information is provided to another part of the Firm; and (iii) you are responsible for contacting the Firm to obtain such certification materials if not received. Your failure to return properly completed certification materials by the specified deadline (including because you did not provide HCM with updated contact information) will result in the forfeiture of all of your RSUs and any Shares at Risk and subject previously delivered amounts to repayment under Paragraph 9(c)(iv).

(e)

You Agree to Other Terms, Conditions and Consents

. By accepting this Award you understand and agree that;

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(i)

Amounts May Be Rounded to Avoid Fractional RSU Shares

. RSUs that become Vested, RSU Shares that become deliverable and RSU Shares subject to Transfer Restrictions may, in each case, be rounded to avoid fractional RSU Shares.

(ii)

Firm May Deliver Cash or Other Property Instead of RSU Shares

. In accordance with Section 1.3.2(i) of the Plan, in the sole discretion of the Committee, in lieu of all or any portion of the RSU Shares, the Firm may deliver cash, other securities, other awards under the Plan or other property, and all references in this Award Agreement to deliveries of RSU Shares will include such deliveries of cash, other securities, other awards under the Plan or other property.

(iii)

Firm May Deliver Your Award into an Escrow Account

. The Firm may establish and maintain an escrow account on such terms (which may include your executing any documents related to, and your paying for any costs associated with, such account) as it may deem necessary or appropriate, and the delivery of RSU Shares (including any Shares at Risk), and any payment of cash (including dividends and payments under Dividend Equivalent Rights) or other property, may initially be made into and held in that escrow account until such time as the Committee has received such documentation as it may have requested or until the Committee has determined that any other conditions or restrictions on delivery of RSU Shares, cash or other property required by this Award Agreement have been satisfied.

(iv)

Firm May Affix Legends and Place Stop Orders on RSU Shares

. GS Inc. may affix to Certificates representing RSU Shares any legend that the Committee determines to be necessary or advisable (including to reflect any restrictions to which you may be subject under the Additional Terms, a separate agreement or any Firm policy applicable to you). GS Inc. may advise the

transfer agent to place a stop order against any legended RSU Shares. For the avoidance of doubt, RSU Shares as used herein includes, without limitation, Restricted Shares.

(v)

You Authorize the Firm to Register, in Its or Its Designee's Name, Any Restrictive